

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

POLICY COMMITTEE
RECOMMENDATION

FOR ENGROSSED

SENATE BILL NO. 1242

By: Hamilton of the Senate

and

Marti of the House

POLICY COMMITTEE RECOMMENDATION

An Act relating to medical marijuana; amending 63 O.S. 2021, Section 427.14, as last amended by Section 2, Chapter 494, O.S.L. 2025 (63 O.S. Supp. 2025, Section 427.14), which relates to the Oklahoma Medical Marijuana and Patient Protection Act; deleting requirement for posting certain bond; requiring certain licensees to submit a land reclamation fee; providing fee amount; providing an exemption; requiring the examination of certain land ownership documents; defining term; directing the Oklahoma Medical Marijuana Authority to provide certain notice to law enforcement agencies; creating the Oklahoma Medical Marijuana Land Reclamation Revolving Fund; stating purpose of fund; making appropriations to the fund; providing for expenditures; repealing Section 2, Chapter 41, O.S.L. 2023 (63 O.S. Supp. 2025, Section 427.26), which relates to bond requirement for medical marijuana commercial growers; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 63 O.S. 2021, Section 427.14, as last amended by Section 2, Chapter 494, O.S.L. 2025 (63 O.S. Supp. 2025, Section 427.14), is amended to read as follows:

Section 427.14. A. There is hereby created the medical marijuana business license, which shall include the following categories:

1. Medical marijuana commercial grower;
2. Medical marijuana processor;
3. Medical marijuana dispensary;
4. Medical marijuana transporter; and
5. Medical marijuana testing laboratory.

B. The Oklahoma Medical Marijuana Authority, with the aid of the Office of Management and Enterprise Services, shall develop a website for medical marijuana business applications.

C. The Authority shall make available on its website, in an easy-to-find location, applications for a medical marijuana business.

D. 1. The annual, nonrefundable fee for a medical marijuana transporter license shall be Two Thousand Five Hundred Dollars (\$2,500.00).

2. The initial, nonrefundable fee for a medical marijuana commercial grower license shall be calculated based upon the total amount of square feet of canopy or acres the grower estimates will be harvested, transferred, or sold for the year. The annual,

1 nonrefundable license fee shall be based upon the total amount of
2 square feet of canopy or acres harvested, transferred, or sold by
3 the grower during the previous twelve (12) months. The amount of
4 the fees shall be determined as follows:

5 a. For an indoor, greenhouse, or light deprivation
6 medical marijuana grow facility:

7 (1) Tier 1: Up to ten thousand (10,000) square feet
8 of canopy, the fee shall be Two Thousand Five
9 Hundred Dollars (\$2,500.00),

10 (2) Tier 2: Ten thousand one (10,001) square feet of
11 canopy to twenty thousand (20,000) square feet of
12 canopy, the fee shall be Five Thousand Dollars
13 (\$5,000.00),

14 (3) Tier 3: Twenty thousand one (20,001) square feet
15 of canopy to forty thousand (40,000) square feet
16 of canopy, the fee shall be Ten Thousand Dollars
17 (\$10,000.00),

18 (4) Tier 4: Forty thousand one (40,001) square feet
19 of canopy to sixty thousand (60,000) square feet
20 of canopy, the fee shall be Twenty Thousand
21 Dollars (\$20,000.00),

22 (5) Tier 5: Sixty thousand one (60,001) square feet
23 of canopy to eighty thousand (80,000) square feet
24

of canopy, the fee shall be Thirty Thousand Dollars (\$30,000.00),

(6) Tier 6: Eighty thousand one (80,001) square feet of canopy to ninety-nine thousand nine hundred ninety-nine (99,999) square feet of canopy, the fee shall be Forty Thousand Dollars (\$40,000.00), and

(7) Tier 7: One hundred thousand (100,000) square feet of canopy and beyond, the fee shall be Fifty Thousand Dollars (\$50,000.00), plus an additional twenty-five cents (\$0.25) per square foot of canopy over one hundred thousand (100,000) square feet.

b. For an outdoor medical marijuana grow facility:

(1) Tier 1: Less than two and one-half (2 1/2) acres, the fee shall be Two Thousand Five Hundred Dollars (\$2,500.00),

(2) Tier 2: More than two and one-half (2 1/2) acres up to five (5) acres, the fee shall be Five Thousand Dollars (\$5,000.00),

(3) Tier 3: More than five (5) acres up to ten (10) acres, the fee shall be Ten Thousand Dollars (\$10,000.00),

- 1 (4) Tier 4: More than ten (10) acres up to twenty
2 (20) acres, the fee shall be Twenty Thousand
3 Dollars (\$20,000.00),
4 (5) Tier 5: More than twenty (20) acres up to thirty
5 (30) acres, the fee shall be Thirty Thousand
6 Dollars (\$30,000.00),
7 (6) Tier 6: More than thirty (30) acres up to forty
8 (40) acres, the fee shall be Forty Thousand
9 Dollars (\$40,000.00),
10 (7) Tier 7: More than forty (40) acres up to fifty
11 (50) acres, the fee shall be Fifty Thousand
12 Dollars (\$50,000.00), and
13 (8) Tier 8: If the amount of acreage exceeds fifty
14 (50) acres, the fee shall be Fifty Thousand
15 Dollars (\$50,000.00) plus an additional Two
16 Hundred Fifty Dollars (\$250.00) per acre.

17 c. For a medical marijuana commercial grower that has a
18 combination of both indoor and outdoor growing
19 facilities at one location, the medical marijuana
20 commercial grower shall be required to obtain a
21 separate license from the Authority for each type of
22 grow operation and shall be subject to the licensing
23 fees provided for in subparagraphs a and b of this
24 paragraph.

1 d. As used in this paragraph:

2 (1) "canopy" means the total surface area within a
3 cultivation area that is dedicated to the
4 cultivation of flowering marijuana plants. The
5 surface area of the plant canopy must be
6 calculated in square feet and measured and must
7 include all of the area within the boundaries
8 where the cultivation of the flowering marijuana
9 plants occurs. If the surface of the plant
10 canopy consists of noncontiguous areas, each
11 component area must be separated by identifiable
12 boundaries. If a tiered or shelving system is
13 used in the cultivation area, the surface area of
14 each tier or shelf must be included in
15 calculating the area of the plant canopy.
16 Calculation of the area of the plant canopy may
17 not include the areas within the cultivation area
18 that are used to cultivate immature marijuana
19 plants and seedlings, prior to flowering, and
20 that are not used at any time to cultivate mature
21 marijuana plants. If the flowering plants are
22 vertically grown in cylinders, the square footage
23 of the canopy shall be measured by the
24

1 circumference of the cylinder multiplied by the
2 total length of the cylinder,

3 (2) "greenhouse" means a structure located outdoors
4 that is completely covered by a material that
5 allows a controlled level of light transmission,
6 and

7 (3) "light deprivation" means a structure that has
8 concrete floors and the ability to manipulate
9 natural light.

10 3. The initial, nonrefundable fee for a medical marijuana
11 processor license shall be Two Thousand Five Hundred Dollars
12 (\$2,500.00). The annual, nonrefundable license fee for a medical
13 marijuana processor license shall be determined based on the
14 previous twelve (12) months as follows:

15 a. Tier 1: The transfer or sale of zero (0) to ten
16 thousand (10,000) pounds of biomass or the production,
17 transfer, or sale of up to one hundred (100) liters of
18 cannabis concentrate, whichever is greater, the annual
19 fee shall be Two Thousand Five Hundred Dollars
20 (\$2,500.00),

21 b. Tier 2: The transfer or sale of ten thousand one
22 (10,001) pounds to fifty thousand (50,000) pounds of
23 biomass or the production, transfer, or sale of one
24 hundred one (101) to three hundred fifty (350) liters

- 1 of cannabis concentrate, whichever is greater, the
2 annual fee shall be Five Thousand Dollars (\$5,000.00),
- 3 c. Tier 3: The transfer or sale of fifty thousand one
4 (50,001) pounds to one hundred fifty thousand
5 (150,000) pounds of biomass or the production,
6 transfer, or sale of three hundred fifty-one (351) to
7 six hundred fifty (650) liters of cannabis
8 concentrate, whichever is greater, the annual fee
9 shall be Ten Thousand Dollars (\$10,000.00),
- 10 d. Tier 4: The transfer or sale of one hundred fifty
11 thousand one (150,001) pounds to three hundred
12 thousand (300,000) pounds of biomass or the
13 production, transfer, or sale of six hundred fifty-one
14 (651) to one thousand (1,000) liters of cannabis
15 concentrate, whichever is greater, the annual fee
16 shall be Fifteen Thousand Dollars (\$15,000.00), and
- 17 e. Tier 5: The transfer or sale of more than three
18 hundred thousand one (300,001) pounds of biomass or
19 the production, transfer, or sale in excess of one
20 thousand one (1,001) liters of cannabis concentrate,
21 the annual fee shall be Twenty Thousand Dollars
22 (\$20,000.00).

23 For purposes of this paragraph only, if the cannabis concentrate
24 is in nonliquid form, every one thousand (1,000) grams of

1 concentrated marijuana shall be calculated as one (1) liter of
2 cannabis concentrate.

3 4. The initial, nonrefundable fee for a medical marijuana
4 dispensary license shall be Two Thousand Five Hundred Dollars
5 (\$2,500.00). The annual, nonrefundable license fee for a medical
6 marijuana dispensary license shall be calculated at ten percent
7 (10%) of the sum of twelve (12) calendar months of the combined
8 annual state sales tax and state excise tax of the dispensary during
9 the previous twelve (12) months. The minimum fee shall be not less
10 than Two Thousand Five Hundred Dollars (\$2,500.00) and the maximum
11 fee shall not exceed Ten Thousand Dollars (\$10,000.00).

12 5. The annual, nonrefundable license fee for a medical
13 marijuana testing laboratory shall be Twenty Thousand Dollars
14 (\$20,000.00).

15 E. All applicants seeking licensure or licensure renewal as a
16 medical marijuana business shall comply with the following general
17 requirements:

18 1. All applications for licenses and registrations authorized
19 pursuant to this section shall be made upon forms prescribed by the
20 Authority;

21 2. Each application shall identify the city or county in which
22 the applicant seeks to obtain licensure as a medical marijuana
23 business;

24

1 3. Applicants shall submit a complete application to the
2 Authority before the application may be accepted or considered;

3 4. All applications shall be complete and accurate in every
4 detail;

5 5. All applications shall include all attachments or
6 supplemental information required by the forms supplied by the
7 Authority;

8 6. All applications for a transporter license, initial
9 dispensary license, initial processor license, or laboratory license
10 shall be accompanied by a full remittance for the whole amount of
11 the license fee as set forth in subsection D of this section. All
12 submissions of grower applications, renewal processor applications,
13 and renewal dispensary applications shall be accompanied by a
14 remittance of a fee of Two Thousand Five Hundred Dollars
15 (\$2,500.00). The Authority shall invoice license applicants, if
16 applicable, and notify applicants in the same method and manner as
17 the application was submitted to the Authority for any additional
18 licensing fees owed pursuant to subsection D of this section prior
19 to approval of a license application. Applicants and licensees
20 shall remit all required license and application fees, including any
21 additional licensing fees, if applicable, in full within forty-five
22 (45) days of notification by the Authority. Failure to remit such
23 fees shall result in the denial of the application. License fees
24 are nonrefundable;

1 7. All applicants shall be approved for licensing review that,
2 at a minimum, meet the following criteria:

3 a. twenty-five (25) years of age or older,

4 b. if applying as an individual, proof that the applicant
5 is a resident of this state pursuant to paragraph 12
6 of this subsection,

7 c. if applying as an entity, proof that seventy-five
8 percent (75%) of all members, managers, executive
9 officers, partners, board members or any other form of
10 business ownership are residents of this state
11 pursuant to paragraph 12 of this subsection,

12 d. if applying as an individual or entity, proof that the
13 individual or entity is registered to conduct business
14 in this state,

15 e. disclosure of all ownership interests pursuant to the
16 Oklahoma Medical Marijuana and Patient Protection Act,
17 and

18 f. proof that the medical marijuana business, medical
19 marijuana research facility, medical marijuana
20 education facility and medical marijuana waste
21 disposal facility applicant or licensee has not been
22 convicted of a nonviolent felony in the last two (2)
23 years, or any other felony conviction within the last
24 five (5) years, is not a current inmate in the custody

1 of the Department of Corrections, or currently
2 incarcerated in a jail or corrections facility.

3 Upon reasonable suspicion that a medical marijuana business licensee
4 is illegally growing, processing, transferring, selling, disposing,
5 or diverting marijuana, the Authority, the Oklahoma State Bureau of
6 Narcotics and Dangerous Drugs Control, the Oklahoma State Bureau of
7 Investigation (OSBI), or the Attorney General may subpoena documents
8 necessary to establish the personal identifying information of all
9 owners and individuals with any ownership interest in the business;

10 8. There shall be no limit to the number of medical marijuana
11 business licenses or categories that an individual or entity can
12 apply for or receive, although each application and each category
13 shall require a separate application, application fee, or license
14 fee. A commercial grower, processor and dispensary, or any
15 combination thereof, are authorized to share the same address or
16 physical location, subject to the restrictions set forth in the
17 Oklahoma Medical Marijuana and Patient Protection Act;

18 9. No medical marijuana business premises is permitted to have
19 multiple licenses of the same type pursuant to the licensing
20 requirements of this section, excluding the following:

- 21 a. a commercial grower with a combination of an indoor or
22 outdoor growing facility on one parcel of land,
- 23 b. a licensed medical marijuana processor used by
24 multiple licensees, and

1 c. a licensed medical marijuana business that has an
2 approved application by the Authority while the new
3 business seeks registration from the Oklahoma State
4 Bureau of Narcotics and Dangerous Drugs Control
5 pursuant to Section 427.14c of this title;

6 10. All applicants for a medical marijuana business license,
7 research facility license or education facility license authorized
8 by the Oklahoma Medical Marijuana and Patient Protection Act, or for
9 a renewal of such license, shall undergo a national fingerprint-
10 based background check conducted by the Oklahoma State Bureau of
11 Investigation within thirty (30) days prior to the application for
12 the license, including:

- 13 a. individual applicants applying on their own behalf,
- 14 b. individuals applying on behalf of an entity,
- 15 c. all principal officers of an entity, and
- 16 d. all owners of an entity as defined by the Oklahoma
17 Medical Marijuana and Patient Protection Act;

18 11. All applicable fees charged by the OSBI are the
19 responsibility of the applicant and shall not be higher than fees
20 charged to any other person or industry for such background checks;

21 12. In order to be considered a resident of this state for
22 purposes of a medical marijuana business application, all applicants
23 shall provide proof of state residency for at least two (2) years
24 immediately preceding the date of application or five (5) years of

1 continuous state residency during the preceding twenty-five (25)
2 years immediately preceding the date of application. Sufficient
3 documentation of proof of residency shall include a combination of
4 the following:

- 5 a. an unexpired state-issued driver license,
- 6 b. a state-issued identification card,
- 7 c. a utility bill preceding the date of application,
8 excluding cellular telephone and Internet bills,
- 9 d. a residential property deed to property in this state,
10 and
- 11 e. a rental agreement preceding the date of application
12 for residential property located in this state.

13 Applicants that were issued a medical marijuana business license
14 prior to August 30, 2019, are hereby exempt from the two-year or
15 five-year Oklahoma residence requirement mentioned above;

16 13. All license applicants shall be required to submit a
17 registration with the Oklahoma State Bureau of Narcotics and
18 Dangerous Drugs Control as provided in Sections 2-301 through 2-309
19 of this title;

20 14. All applicants shall establish their identity through
21 submission of a color copy or digital image of one of the following
22 unexpired documents:

- 23 a. front of a state-issued driver license,
- 24 b. front of a state-issued identification card,

- 1 c. a United States passport or other photo identification
2 issued by the United States government, or
3 d. a tribal identification card approved for
4 identification purposes by the Department of Public
5 Safety;

6 15. All applicants shall submit an applicant photograph; and

7 16. All applicants for a medical marijuana business license
8 seeking to operate a commercial growing operation shall ~~file~~ submit,
9 along with their application, a bond as prescribed in Section 427.26
10 of this title land reclamation fee in the amount of Two Thousand
11 Dollars (\$2,000.00). Submission and payment of the land reclamation
12 fee by the applicant shall not be required if, upon verification by
13 the Authority, the land upon which the applicant intends to conduct
14 commercial growing operations has been owned by the applicant or a
15 first degree relative of the applicant for a minimum of five (5)
16 years prior to submission of said application. The Authority shall
17 verify that the person submitting the application is the same
18 identical person or a first degree relative of the person who is the
19 owner of the land. Land ownership shall be verified by examining
20 recorded property deeds, property tax records, title insurance, or
21 mortgage statements. As used in this paragraph, "first degree
22 relative" includes a mother, father, spouse, son, or daughter.

23 F. The Authority shall review the medical marijuana business
24 application; approve, reject, or deny the application; and send the

1 approval, rejection, denial, or status-update letter to the
2 applicant in the same method the application was submitted to the
3 Authority within ninety (90) business days of receipt of the
4 application.

5 G. 1. The Authority shall review the medical marijuana
6 business applications, conduct all investigations, inspections, and
7 interviews, and collect all license and application fees before
8 approving the application.

9 2. Approved applicants shall be issued a medical marijuana
10 business license for the specific category applied under, which
11 shall act as proof of their approved status. Rejection and denial
12 letters shall provide a reason for the rejection or denial.
13 Applications may only be rejected or denied based on the applicant
14 not meeting the standards set forth in the provisions of the
15 Oklahoma Medical Marijuana and Patient Protection Act and Sections
16 420 through 427.28 of this title, improper completion of the
17 application, unpaid license or application fees, or for a reason
18 provided for in the Oklahoma Medical Marijuana and Patient
19 Protection Act and Sections 420 through 427.28 of this title. If an
20 application is rejected for failure to provide required information,
21 the applicant shall have thirty (30) days to submit the required
22 information for reconsideration. Unless the Authority determines
23 otherwise, an application that has been resubmitted but is still
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1 incomplete or contains errors that are not clerical or typographical
2 in nature shall be denied.

3 3. Status-update letters shall provide a reason for delay in
4 either approval, rejection or denial should a situation arise in
5 which an application was submitted properly but a delay in
6 processing the application occurred.

7 4. Approval, rejection, denial or status-update letters shall
8 be sent to the applicant in the same method the application was
9 submitted to the Authority.

10 H. A license for a medical marijuana business, medical
11 marijuana research facility, medical marijuana education facility or
12 medical marijuana waste disposal facility shall not be issued to or
13 held by:

14 1. A person until all required fees have been paid;

15 2. A person who has been convicted of a nonviolent felony
16 within two (2) years of the date of application, or within five (5)
17 years for any other felony;

18 3. A corporation, if the criminal history of any of its
19 officers, directors or stockholders indicates that the officer,
20 director or stockholder has been convicted of a nonviolent felony
21 within two (2) years of the date of application, or within five (5)
22 years for any other felony;

23 4. A person under twenty-five (25) years of age;

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1 5. A person licensed pursuant to this section who, during a
2 period of licensure, or who, at the time of application, has failed
3 to:

4 a. file taxes, interest or penalties due related to a
5 medical marijuana business, or

6 b. pay taxes, interest or penalties due related to a
7 medical marijuana business;

8 6. A sheriff, deputy sheriff, police officer or prosecuting
9 officer, or an officer or employee of the Authority or municipality;

10 7. A person whose authority to be a caregiver, as defined in
11 Section 427.2 of this title, has been revoked by the Authority; or

12 8. A person who was involved in the management or operations of
13 any medical marijuana business, medical marijuana research facility,
14 medical marijuana education facility or medical marijuana waste
15 disposal facility that, after the initiation of a disciplinary
16 action, has had a medical marijuana license revoked, not renewed, or
17 surrendered during the five (5) years preceding submission of the
18 application and for the following violations:

19 a. unlawful sales or purchases,

20 b. any fraudulent acts, falsification of records or
21 misrepresentation to the Authority, medical marijuana
22 patient licensees, caregiver licensees or medical
23 marijuana business licensees,

24 c. any grossly inaccurate or fraudulent reporting,

- d. threatening or harming any medical marijuana patient, caregiver, medical practitioner or employee of the Authority,
- e. knowingly or intentionally refusing to permit the Authority access to premises or records,
- f. using a prohibited, hazardous substance for processing in a residential area,
- g. criminal acts relating to the operation of a medical marijuana business, or
- h. any violations that endanger public health and safety or product safety.

I. In investigating the qualifications of an applicant or a licensee, the Authority and municipalities may have access to criminal history record information furnished by a criminal justice agency subject to any restrictions imposed by such an agency.

J. The failure of an applicant or licensee to provide the requested information by the Authority deadline may be grounds for denial of the application.

K. All applicants and licensees shall submit information to the Authority in a full, faithful, truthful and fair manner. The Authority may recommend denial of an application where the applicant or licensee made misstatements, omissions, misrepresentations or untruths in the application or in connection with the background investigation of the applicant. This type of conduct may be grounds

1 for administrative action against the applicant or licensee. Typos
2 and scrivener errors shall not be grounds for denial.

3 L. A licensed medical marijuana business premises shall be
4 subject to and responsible for compliance with applicable provisions
5 consistent with the zoning where such business is located as
6 described in the most recent versions of the Oklahoma Uniform
7 Building Code, the International Building Code and the International
8 Fire Code, unless granted an exemption by a municipality or
9 appropriate code enforcement entity.

10 M. All medical marijuana business, medical marijuana research
11 facility, medical marijuana education facility and medical marijuana
12 waste disposal facility licensees shall pay the relevant licensure
13 fees prior to receiving licensure to operate. Applicants and
14 licensees shall remit all required license and application fees,
15 including any additional licensing fees, if applicable, in full
16 within forty-five (45) days of notification by the Authority.
17 Failure to remit such fees shall result in the denial of the
18 application.

19 N. A medical marijuana business, medical marijuana research
20 facility, medical marijuana education facility or medical marijuana
21 waste disposal facility that attempts to renew its license after the
22 expiration date of the license shall pay a late renewal fee of Five
23 Hundred Dollars (\$500.00) per week that the license is expired.
24 Late renewal fees are nonrefundable. A license that has been

1 expired for more than sixty (60) calendar days shall not be renewed.
2 Only license renewal applications submitted at least sixty (60)
3 calendar days prior to the expiration date shall be considered
4 timely submitted and subject to the provisions of subsection F of
5 this section. A medical marijuana business license shall remain
6 unexpired during the pendency of the application for renewal
7 provided that such application was timely submitted. The Authority
8 shall allow renewal applications to be submitted at least one
9 hundred twenty (120) calendar days prior to the expiration date of a
10 medical marijuana business license.

11 O. 1. Except as provided by this section, immediately upon
12 expiration of a license, any medical marijuana business, medical
13 marijuana research facility, medical marijuana education facility,
14 or medical marijuana waste disposal facility shall cease all
15 possession, transfer, or sale of medical marijuana or medical
16 marijuana products. Any continued possession, sale, or transfer
17 shall subject the business owners and operators to felony
18 prosecution pursuant to the Uniform Controlled Dangerous Substances
19 Act.

20 2. Upon the expiration or revocation of a medical marijuana
21 business license or a determination that the business license is no
22 longer in good standing, the Authority shall provide notice to all
23 law enforcement agencies in the jurisdiction of the medical
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1 marijuana business that the business license has expired, been
2 revoked, or is no longer in good standing.

3 P. A medical marijuana business license holder shall require
4 all individuals employed under his or her license to be issued a
5 credential pursuant to the provisions of Section 427.14b of this
6 title prior to employment.

7 Q. An original medical marijuana business license issued on or
8 after June 26, 2018, by the Authority, for a medical marijuana
9 commercial grower, a medical marijuana processor or a medical
10 marijuana dispensary shall be deemed to have been grandfathered into
11 the location on the date the original license was first issued for
12 purposes of determining the authority of the business to conduct and
13 continue the same type of business at that location under a license
14 issued by the Authority, except as may be provided in Sections 425
15 and 426.1 of this title. Any change in ownership after the original
16 medical marijuana business license has been issued by the Authority
17 shall be construed by the Authority to be a continuation of the same
18 type of business originally licensed at that location. Nothing
19 shall authorize the Authority to deny issuance or renewal of a
20 license or transfer of license due to a change in ownership for the
21 same business location previously licensed, except when a revocation
22 is otherwise authorized by law or a protest is made under the
23 municipal compliance provisions of Section 426.1 of this title.

1 R. A medical marijuana business license holder shall require
2 all individuals employed under their license to be issued a
3 credential pursuant to the provisions of Section 427.14b of this
4 title prior to employment.

5 S. The Executive Director of the Authority may promulgate rules
6 to implement the provisions of this section including, but not
7 limited to, required application materials to be submitted by the
8 applicant and utilized by the Authority to determine medical
9 marijuana business licensing fees pursuant to this section.

10 SECTION 2. NEW LAW A new section of law to be codified
11 in the Oklahoma Statutes as Section 427.5b of Title 63, unless there
12 is created a duplication in numbering, reads as follows:

13 There is hereby created in the State Treasury a revolving fund
14 for the Oklahoma Medical Marijuana Authority to be designated the
15 "Oklahoma Medical Marijuana Land Reclamation Revolving Fund". The
16 fund shall be a continuing fund, not subject to fiscal year
17 limitations, and shall consist of all monies received by the
18 Authority from land reclamation fees collected pursuant to the
19 Oklahoma Medical Marijuana and Patient Protection Act. All monies
20 accruing to the credit of the fund are hereby appropriated and may
21 be budgeted and expended by the Oklahoma Medical Marijuana Authority
22 for the purposes provided for in this section. Expenditures from
23 the fund shall be made upon warrants issued by the State Treasurer
24 against claims filed as prescribed by law with the Director of the

1 Office of Management and Enterprise Services for approval and
2 payment. Up to Five Million Dollars (\$5,000,000.00) of the funds
3 received by and credited to the fund may be used and expended by the
4 Oklahoma Medical Marijuana Authority for environmental remediation
5 and redevelopment projects. Any remaining funds shall be deposited
6 in the General Revenue Fund of the State Treasury.

7 SECTION 3. REPEALER Section 2, Chapter 41, O.S.L. 2023
8 (63 O.S. Supp. 2025, Section 427.26), is hereby repealed.

9 SECTION 4. This act shall become effective November 1, 2026.

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11 60-2-17349 GRS 04/08/26

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